

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 COMMITTEE SUBSTITUTE

4 FOR ENGROSSED

HOUSE BILL 4298

By: Pae and McCane of the House

5 and

6 Rosino and Reinhardt of the
7 Senate

8
9 COMMITTEE SUBSTITUTE

10 An Act relating to child care; amending 10 O.S. 2021,
11 Section 405.4, which relates to master teachers;
12 directing establishment of certain master teacher
13 ratios; authorizing child care facilities to charge
14 certain co-payment; imposing certain limitations on
15 co-payment amount; prohibiting the Department of
16 Human Services from penalizing or taking adverse
17 action against facilities; requiring facilities to
18 apply co-payment uniformly; requiring the Department
19 to seek certain federal approval; requiring and
20 authorizing certain actions by the Department upon
21 certain condition; providing for codification;
22 providing an effective date; and declaring an
23 emergency.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY 10 O.S. 2021, Section 405.4, is
21 amended to read as follows:

22 Section 405.4. A. Any person with a bachelor's degree or
23 postgraduate degree shall be considered as having met the
24 educational requirements for a director of a full-time child care

1 center required by the Department of Human Services. Nothing in
2 this section shall be construed as to affect annual continuing
3 education requirements. The director of a child care center may
4 also qualify as a master teacher for children of all ages.

5 B. Any person replacing a master teacher at a child care center
6 shall be granted a one-year probationary period to fulfill the
7 educational qualifications required by the Department for a master
8 teacher. The Department may extend the probationary period an
9 additional year as long as the person is actively pursuing that
10 goal.

11 C. Not later than the effective date of this act, the Director
12 of Human Services shall establish master teacher ratios for two-,
13 three-, four-, and five-star child care facilities that are the most
14 permissive ratios possible without harming the safety of children or
15 the quality of care provided, as determined by the Director.

16 D. Licensed child care facilities opened or expanded before
17 November 1, 2016, shall have thirty-five (35) square feet of floor
18 area per infant in rooms occupied only by infants. New construction
19 and existing space not previously licensed for child care after
20 November 1, 2016, shall have forty (40) square feet of floor area
21 per infant in rooms occupied only by infants.

22 SECTION 2. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 410.2 of Title 10, unless there
24 is created a duplication in numbering, reads as follows:

1 A. Subject to federal approval as described in subsection B of
2 this section, a licensed child care facility that participates in
3 the child care subsidy program may charge the child's parent or
4 legal guardian a co-payment not to exceed the lesser of:

5 1. Ten percent (10%) of the family's income; or

6 2. The difference between:

7 a. the subsidy rate applicable to the child, and

8 b. the facility's standard private tuition rate for the
9 same age group and schedule.

10 B. The Department of Human Services shall seek any approval
11 necessary from the federal Administration for Children and Families
12 to implement the provisions of this section.

13 C. If federal Child Care and Development Fund regulations are
14 implemented to remove or modify state limitations on co-payments,
15 the Department:

16 1. At a minimum, shall comply with any conditions of receiving
17 funds under such federal regulations; and

18 2. Shall, through rules promulgated by the Director of Human
19 Services, raise or remove the limitations on co-payments to the
20 maximum extent allowed under such federal regulations.

21 SECTION 3. This act shall become effective July 1, 2026.

22 SECTION 4. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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